

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rebecca Jacobson	Team: Squad #14	CCRB Case #: 201409442	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 09/12/2014 11:25 PM	Location of Incident: § 87(2)(b) and 81st Precinct stationhouse	18 Mo. SOL 3/12/2016	Precinct: 81
Date/Time CV Reported Sat, 09/13/2014 12:44 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 09/13/2014 12:44 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM William Reddin	18523	944924	081 PCT
2. SSA Michael Miller	02951	921596	081 PCT
3. Officers			081 PCT
4. An officer			081 PCT
5. POM Ross Garner	21542	949007	081 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Christopher Kelley	06065	944695	081 PCT
2. POM Peter Colombini	03403	938250	075 DET
3. POM Brian Hellberg	08253	944641	081 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . SSA Michael Miller	Abuse of Authority: At § 87(2)(b) in Brooklyn, Sgt. Michael Miller stopped § 87(2)(b) and § 87(2)(b).	A . Substantiated
B . POM William Reddin	Abuse of Authority: At § 87(2)(b) in Brooklyn, PO William Reddin stopped § 87(2)(b) and § 87(2)(b).	B . Substantiated
C . POM Ross Garner	Abuse of Authority: At § 87(2)(b) in Brooklyn, PO Ross Garner stopped § 87(2)(b) and § 87(2)(b).	C . Substantiated
D . SSA Michael Miller	Abuse of Authority: At § 87(2)(b) in Brooklyn, Sgt. Michael Miller frisked § 87(2)(b).	D . Substantiated
E . SSA Michael Miller	Force: At § 87(2)(b) in Brooklyn, Sgt. Michael Miller used physical force against § 87(2)(b).	E . Unsubstantiated

Officer(s)	Allegation	Inv. Div. Recommendation
F . POM Ross Garner	Abuse of Authority: At § 87(2)(b) in Brooklyn, PO Ross Garner frisked Tavares Miller.	F . Substantiated
G . POM Ross Garner	Abuse of Authority: At § 87(2)(b) in Brooklyn, PO Ross Garner searched Tavares Miller.	G . Substantiated
H . POM Ross Garner	Force: At § 87(2)(b) in Brooklyn, PO Ross Garner used physical force against § 87(2)(b).	H . Unsubstantiated
I . An officer	Force: At § 87(2)(b) in Brooklyn, an officer used a chokehold against § 87(2)(b).	I . Officer(s) Unidentified
J . SSA Michael Miller	Force: At § 87(2)(b) in Brooklyn, Sgt. Michael Miller used physical force against § 87(2)(b).	J . Unsubstantiated
K . SSA Michael Miller	Abuse of Authority: Sgt. Michael Miller entered § 87(2)(b) in Brooklyn.	K . Substantiated
L . POM Ross Garner	Abuse of Authority: PO Ross Garner entered § 87(2)(b) in Brooklyn.	L . Substantiated
M . Officers	Abuse of Authority: Officers entered § 87(2)(b) in Brooklyn.	M . Officer(s) Unidentified
N . SSA Michael Miller	Abuse of Authority: En route to the 81st Precinct stationhouse, Sgt. Michael Miller threatened § 87(2)(b) with the use of force.	N . Unsubstantiated
O . SSA Michael Miller	Discourtesy: At the 81st Precinct stationhouse, Sgt. Michael Miller spoke rudely to § 87(2)(b).	O . Unsubstantiated
P . An officer	Discourtesy: At the 81st Precinct stationhouse, an officer spoke rudely to § 87(2)(b).	P . Officer(s) Unidentified
Q . SSA Michael Miller	Force: At the 81st Precinct stationhouse, Sgt. Michael Miller used physical force against § 87(2)(b).	Q . Unsubstantiated
R . POM Ross Garner	Force: At the 81st Precinct stationhouse, PO Ross Garner used physical force against § 87(2)(b).	R . Unsubstantiated
S . An officer	Force: At the 81st Precinct stationhouse, an officer used physical force against § 87(2)(b).	S . Officer(s) Unidentified

Case Summary

On September 12, 2014, at 11:25 p.m., at § 87(2)(b) in Brooklyn, Sgt. Michael Miller, PO William Reddin, and PO Ross Garner of the 81st Precinct Anti-Crime team, stopped § 87(2)(b) and § 87(2)(b) (**Allegations A, B, C**). § 87(2)(b) alleged that Sgt. Miller approached him and grabbed the outside of his front pants pockets, then also patted down § 87(2)(b) chest and back pants pockets (**Allegation D**). Sgt. Miller then tackled § 87(2)(b) to the ground and with the assistance of PO Reddin, arrested him. § 87(2)(b) alleged that after handcuffing him, Sgt. Miller struck him in the back of the head with a forearm (**Allegations E**). While § 87(2)(b) was being arrested, PO Garner approached § 87(2)(b) who was standing at the top of the brownstone's stairs. § 87(2)(b) alleged that PO Garner patted down his chest, legs, and crotch. PO Garner then allegedly went into § 87(2)(b) pockets (**Allegations F and G**). During this time, § 87(2)(b) cousin, § 87(2)(b) opened the door to the brownstone and came out. § 87(2)(b) tried to enter the home and PO Garner grabbed him from behind. Several other officers were also present and all the officers grabbed and twisted § 87(2)(b) arms and legs. § 87(2)(b) alleged that PO Garner held his face and punched his knees several times (**Allegation H**). § 87(2)(b) father, § 87(2)(b) came outside and attempted to intervene in the struggle and an officer allegedly put his arm around § 87(2)(b) neck and mouth (**Allegation I**). § 87(2)(b) was then placed in a police vehicle. § 87(2)(b) alleged that while being placed in the vehicle, his leg became stuck. Sgt. Miller then approached him, told him, "Get in there, get in there," and punched him in the face (**Allegation J**). After § 87(2)(b) was brought down from the stairs, § 87(2)(b) alleged that officers entered her home. § 87(2)(b) also alleged this and added that officers also entered § 87(2)(b) (**Allegation K**). On the ride to the stationhouse, § 87(2)(b) alleged that Sgt. Miller said to him, "If this was 19-something I would split your head open with a night stick." (**Allegation L**). Once at the stationhouse, § 87(2)(b) alleged that he asked Sgt. Miller "What's wrong with you?" Sgt. Miller responded by calling § 87(2)(b) a "pussy," and saying "You pussy, I'll beat your ass." (**Allegation M**). § 87(2)(b) was placed in a back cell with PO Garner, Sgt. Miller and another officer. One of the officers called § 87(2)(b) an "asshole" and all three officers began punching him until another officer told them to stop (**Allegations N, O, P, and Q**).

§ 87(2)(g)

Mediation, Civil, and Criminal Histories

This case was not eligible for mediation due to § 87(2)(b) and § 87(2)(b) arrest (encl. H4-H9). Neither § 87(2)(b) nor § 87(2)(b) has filed a Notice of Claim with the City of New York as of May 20, 2015 (encl. Q1). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) and the only CCRB complaint § 87(2)(b) or § 87(2)(b) have been involved in (encl. B7-B8).
- Sgt. Miller has been a member of the NYPD for 16 years, has had 45 previous CCRB allegations involving 13 cases, with five substantiated allegations. Sgt. Miller has three substantiated force allegations, which were substantiated with charges and had an NYPD

disposition of no disciplinary action. Sgt. Miller has one substantiated frisk allegation and one substantiated search of person allegation which were substantiated with charges and received an NYPD disposition of instructions. He also has one pending allegation against him for force (encl. B1-B3).

- PO Reddin has been a member of the NYPD for seven years, has had 13 previous CCRB allegations involving eight cases, with no substantiated allegations. PO Reddin currently has three pending allegations against him, two for force and one for premises entered and/or searched. PO Reddin has two previous allegations for stops involving two cases that were not investigated due to the cases truncating (encl. B4-B5).
- PO Garner has been a member of the NYPD for four years, has had eight previous allegations involving four cases, with one substantiated premises entered and/or searched allegation and one vehicle search allegation. Both allegations were substantiated with charges and are pending NYPD dispositions (encl. B6).

Findings and Recommendations

Allegations Not Pleaded

- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]

Explanation of Subject Officer Identification

Both § 87(2)(b) and § 87(2)(b) stated that four plainclothes officer initially approached them. However, Sgt. Miller, PO Garner, and PO Reddin all stated only the three of them were in a vehicle together and did not identify any other officer being present when they initially stopped § 87(2)(b) and § 87(2)(b). The 81st Precinct roll call lists Sgt. Miller, PO Garner, and PO Reddin as being assigned to the same vehicle, and being the only officers assigned to the vehicle (encl. N9-N15). Additionally, there were only three other members of the Anti-Crime team working on the day of the incident, who all stated that they were working together in the same vehicle, which did not arrive at the incident until later. § 87(2)(g)

§ 87(2)(b) described the officer who approached him on the top of the stairs as a white male, standing 6'2"-6'3" tall, with a skinny body build and orange-blond hair. This description most closely matches the physical description of PO Reddin, who is a white male, § 87(2)(b), and has reddish brown hair (encl. H23, H H28).

However, § 87(2)(b) described the officer who approached § 87(2)(b) on the stairs as a white or Hispanic male, standing 6'2" to 6'5" tall, with a stocky build and dark hair. PO Garner, who is a tan-skinned white male, § 87(2)(b), with brown hair, stated that he was the officer who approached § 87(2)(b) (encl. J1, J9). Sgt. Miller and PO Reddin also said that PO Garner was the officer to approach § 87(2)(b) and PO Reddin denied ever interacting with § 87(2)(b) at the top of the stairs. § 87(2)(g)

Allegation A – Abuse of Authority: At § 87(2)(b) in Brooklyn, Sgt. Michael Miller stopped § 87(2)(b) and § 87(2)(b)

Allegation B – Abuse of Authority: At § 87(2)(b) in Brooklyn, PO William Reddin stopped § 87(2)(b) and § 87(2)(b)

Allegation C – Abuse of Authority: At § 87(2)(b) in Brooklyn, PO Ross Garner stopped § 87(2)(b) and § 87(2)(b)

It is undisputed that Sgt. Miller, PO Reddin, and PO Garner stopped § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) alleged that he was walking with his cousin, § 87(2)(b) back to § 87(2)(b) home at § 87(2)(b). As § 87(2)(b) and § 87(2)(b) entered the front gate of the residence, an unmarked black sedan drove past the house. § 87(2)(b) and § 87(2)(b) remained in the front yard of the house for approximately five minutes, waiting for someone to let them into the house. As they were waiting, § 87(2)(b) heard the sound of a car backing up and a door slamming shut. He turned around and observed four plainclothes officers walking towards the gate of the fence, which § 87(2)(b) and § 87(2)(b) had closed behind them. § 87(2)(b) asked the officers, “Okay officer, is there a problem?” None of the officers responded. § 87(2)(b) told § 87(2)(b) to go to the top of the residence’s stairs, where the front door is located, and see if someone was inside the house. An officer, identified through investigation as PO Garner, then reached over the gate, unlatched it, and entered through it. § 87(2)(b) said to PO Garner, “Officer, you can’t do that, this is private property.” PO Garner did not reply and proceeded to walk up the stairs where § 87(2)(b) was standing. A second officer, identified through investigation as Sgt. Miller, approached § 87(2)(b) (encl. E2-E5).

§ 87(2)(b) stated as he was about to open the gate to his home, he saw an unmarked black Impala with four officers in it. § 87(2)(b) recognized one of the officers, Sgt. Miller, as a regular officer in his neighborhood, and an officer who had previously arrested him. When the officers saw § 87(2)(b) they backed up and Sgt. Miller called out his name and told him to come out of the yard. § 87(2)(b) replied that he was not coming out and had not done anything wrong. The officers then asked § 87(2)(b) and § 87(2)(b) to come out of the yard so that they could check them. § 87(2)(b) asked the officers why they needed to come out of the yard because they lived at the location and had not done anything. § 87(2)(b) and § 87(2)(b) tried to go inside the house, but the doors were locked. § 87(2)(b) was at the top entrance of the house and § 87(2)(b) was at the bottom entrance. Approximately 30 seconds after Sgt. Miller had first spoken to § 87(2)(b) he got out of the car and approached the front gate of the house. The officers ran into the yard towards § 87(2)(b) and § 87(2)(b). § 87(2)(b) said to the officers, “Close the gate, get out, why y’all coming in here for.” Sgt. Miller approached § 87(2)(b) and another officer, identified as PO Garner, approached § 87(2)(b) (encl. F2-F4).

Sgt. Miller stated that he was in an unmarked black Chevy Impala with PO Reddin and PO Garner, driving westbound on § 87(2)(b). Sgt. Miller was seated in the front passenger’s seat, PO Reddin was driving, and PO Garner was in the backseat. When they were about halfway down the block, the officers observed two males standing on the south side of the street. Sgt. Miller noted that this area is part of the command’s impact zone and is the command’s highest crime area. Sgt. Miller recognized one of the males as § 87(2)(b) who he noted is a known gun and robbery recidivist within Sgt. Miller’s command and Sgt. Miller has personal knowledge of a previous arrest of § 87(2)(b). Sgt. Miller could not recall who, but one of the officers remarked to the other that it was § 87(2)(b) on the street. PO Reddin pulled up and slowed down in front of § 87(2)(b) and said something similar to “Hey § 87(2)(b).” Sgt. Miller stated that the intention of doing was to get § 87(2)(b) attention and ask him why he was in the area. To Sgt. Miller’s knowledge, § 87(2)(b) did not live on

§ 87(2)(b). A second or two after PO Reddin spoke to § 87(2)(b) he became very panicked, looked both ways and stepped back. § 87(2)(b) and the other individual he was with, identified as § 87(2)(b) banged into each other and ran to a couple of houses down from where they were standing. § 87(2)(b) and § 87(2)(b) opened the gate to § 87(2)(b) § 87(2)(b) ran to the top of the stairs and § 87(2)(b) ran to the ground level floor and immediately began banging on the door. The officers got out of the car and entered the gated area. Sgt. Miller stated that there was no conversation between himself, PO Reddin, and PO Garner about what they were going to do. Sgt. Miller approached § 87(2)(b) and PO Garner went up the stairs toward § 87(2)(b).

§ 87(2)(g) PO Reddin did not describe § 87(2)(b) and § 87(2)(b) as bumping into each other, but did describe § 87(2)(b) as looking back and forth before running away from the officers. PO Reddin noted that he decided to get out of the car when § 87(2)(b) began looking back and forth. PO Reddin described himself as standing right in between the foot of the stairs and where Sgt. Miller and § 87(2)(b) were standing. PO Garner could not recall which officer spoke to § 87(2)(b) but stated one of them said, “Hey § 87(2)(b) what’s going on, police.” He described § 87(2)(b) and § 87(2)(b) as stopping walking, turning back, and walking in the other direction. PO Garner described these movements as “cutting back” and noted that it was clear from their movements that they had not originally been intending to enter the gated area of the building.

A stop requires reasonable suspicion that the individual being stopped has committed, is committing, or is about to commit a crime. People v. DeBour, 40 N.Y.2d 210 (1976) (encl. A1-A11). An individual’s arrest history and presence in an area with a specific crime pattern do not provide a basis for reasonable suspicion. People v. Johnson, 64 N.Y.2d 617 (1984) (encl. A12-A15). Furthermore, flight alone, even if accompanied with equivocal circumstances that would justify a police request for information, does not establish reasonable suspicion of criminality and is insufficient to justify pursuit. People v. Reyes, 69 A.D.3d 523 (2010) (encl. A16-A19).

§ 87(2)(g)

§ 87(2)(b) it is recommended that **Allegations A, B, and C** be closed as **substantiated**.

Allegation D – Abuse of Authority: At § 87(2)(b) in Brooklyn, Sgt. Michael Miller frisked § 87(2)(b)

It is undisputed that Sgt. Miller frisked § 87(2)(b) § 87(2)(g)

§ 87(2)(b) stated that after Sgt. Miller entered the gate and approached him, he took two or three steps backwards. While speaking to Sgt. Miller about being harassed, § 87(2)(b) turned his body to the left in order to be able to see what was occurring with § 87(2)(b) at the top of the stairs. Sgt. Miller, who was standing approximately three feet away, grabbed the chest of § 87(2)(b) t-shirt with one hand, pulled § 87(2)(b) towards him, and released him. § 87(2)(b) became “upset” and argued with Sgt. Miller, who grabbed § 87(2)(b) front right pocket and

asked § 87(2)(b) if he had anything that could stab him. § 87(2)(b) replied, “Officer, please get your hand off my pocket, if you want to know what’s in my pocket, I will empty it out for you.” Sgt. Miller then grabbed § 87(2)(b) left front pocket, and instructed § 87(2)(b) to turn around and put his hands up. § 87(2)(b) turned around halfway and put his hands up. He continued asking Sgt. Miller why he was being arrested and if he was being arrested and told Sgt. Miller that he was going to start recording. Sgt. Miller stepped behind § 87(2)(b) and patted down his chest and his pants pocket from behind. § 87(2)(b) began going through his phone looking for the video app, at which point he was tackled and handcuffed.

Sgt. Miller stated that upon approaching § 87(2)(b) he noticed that § 87(2)(b) who was wearing sweatpants, had a heavy front left pocket. Sgt. Miller described the bulge as heavy and protruding from the pocket. He could not make out the shape of it, but described it as approximately the size of a fist, maybe a little bit smaller. § 87(2)(b) hand kept going towards his pocket and Sgt. Miller said to him, “Keep your hands away from your pocket, get your hands up, get your hands up.” § 87(2)(b) kept putting his hands up and then back down. This went on several times and Sgt. Miller moved forward to grab his pocket. When Sgt. Miller reached to grab § 87(2)(b) pocket, § 87(2)(b) turned the other way. This caused Sgt. Miller’s suspicion level to rise and he began to worry because he did not know what § 87(2)(b) had in his pocket and believed there was a possibility it was a firearm. Sgt. Miller, who was approximately six to seven feet from § 87(2)(b) during this time, issued additional verbal commands, which § 87(2)(b) disregarded, and then moved in again to grab § 87(2)(b) pocket. Sgt. Miller estimated he was issuing verbal commands for 10-12 seconds before he reached for the pocket. When Sgt. Miller reached for the pocket, § 87(2)(b) grabbed Sgt. Miller’s wrist, pushed it away, stepped back into a “fighting stance,” and said, “Yo, touch me and see what happens.” (encl. I7-I9). Sgt. Miller then brought § 87(2)(b) to the ground. A 20-30 second struggle ensued, after which § 87(2)(b) was placed in handcuffs. Sgt. Miller then grabbed § 87(2)(b) pocket and felt a hard object which he removed and discovered to be a cell phone.

PO Reddin stated that he heard Sgt. Miller make a comment about a bulge in § 87(2)(b) pants, but did not recall if he noticed the bulge himself. He corroborated that § 87(2)(b) said, “Touch me and see what happens,” and stated that at some point, § 87(2)(b) grabbed Sgt. Miller’s wrist, prompting Sgt. Miller to bring him to the ground. PO Reddin saw the bulge during the struggle, but did not recall its size or shape. After § 87(2)(b) was handcuffed, he was frisked, although PO Reddin could not recall if he or Sgt. Miller did so, and the object was found to be a cellphone. A Stop, Question and Frisk Report (UF-250) completed by PO Reddin (encl. H18) notes that § 87(2)(b) was frisked because of furtive movements, suspicion of a violent crime, actions indicative of engaging in violent crimes, refusal to comply with directions, and a suspicious bulge/object in the left pocket. PO Reddin stated that he completed this report as well as another for § 87(2)(b) as part of arrest processing and based on a combination of observations and information reported by other officers.

In order to frisk a person, an officer must have reasonable suspicion that the person is armed. People v. De Bour, 40 N.Y.2d 210 (1976) (encl. A1-A11). The presence of a bulge is insufficient to justify a frisk when there is nothing in the character or location of the bulge to suggest that it is a weapon. People v. Hill, 262 A.D.2d 870 (1999) (encl. A20-A21). Additionally, an individual with a weighted down jacket making a motion to blade his body and changing directions upon noticing police in a high-crime location may provide officers with founded suspicion to question, but does not give rise to the reasonable suspicion needed to justify a frisk. Furthermore, an individual is entitled to engage in an immediate, spontaneous, and proportionate reaction to an illegal seizure, People v. Gerard, 94 A.D.3d 592 (2012) (encl. A26-A27).

§ 87(2)(g)

§ 87(2)(g)

it is therefore recommended that **Allegation D** be substantiated.

Allegation E – Force: At § 87(2)(b) in Brooklyn, Sgt. Michael Miller used physical force against § 87(2)(b)

§ 87(2)(b) stated that before he could start recording on his phone, Sgt. Miller tackled him from behind, making contact with the back of § 87(2)(b) waist. As he went forward, § 87(2)(b) grabbed the stair railing to prevent himself from striking the railing or falling. Once § 87(2)(b) grabbed the railing, Sgt. Miller grabbed his left arm. § 87(2)(b) felt that Sgt. Miller was trying to arrest him and decided to go to the ground on his own. Sgt. Miller went down to the ground with § 87(2)(b) landing on § 87(2)(b) back. Once on the ground, Sgt. Miller yanked § 87(2)(b) left arm behind his hand and handcuffed it. Sgt. Miller struck § 87(2)(b) in the back, with what § 87(2)(b) believed was his forearm, causing the front right side of § 87(2)(b) head to strike the ground.

Sgt. Miller stated that after § 87(2)(b) pushed his hand away and said, “Yo, touch me and see what happens,” he balled up his fists and stepped back into a “fighting stance.” Sgt. Miller told § 87(2)(b) that he was under arrest and to put his hands behind his back. § 87(2)(b) was not compliant; Sgt. Miller issued him the same instruction, which he was again not compliant with. Sgt. Miller moved in to handcuff § 87(2)(b) who began flailing and refused to be handcuffed. Sgt. Miller then “bundled” § 87(2)(b) up, wrapping his arms his arms all the way around § 87(2)(b) from the front, similar to a bear hug, and brought § 87(2)(b) to the ground. Sgt. Miller struggled with § 87(2)(b) who was flailing his arms and legs, and PO Reddin who came to assist with the arrest for approximately 20-30 seconds before they were able to handcuff § 87(2)(b).

PO Reddin heard § 87(2)(b) saying to Sgt. Miller, “Yo, touch me and see what fucking happens.” PO Reddin said that at some point during § 87(2)(b) and Sgt. Miller’s interaction, § 87(2)(b) grabbed Sgt. Miller’s wrist. Immediately following this, Sgt. Miller wrapped his arms around § 87(2)(b) in an action similar to a bear hug and brought § 87(2)(b) to the ground. Once § 87(2)(b) was on the ground, PO Reddin became involved in assisting with handcuffing § 87(2)(b) which PO Reddin estimated took less than a minute. § 87(2)(b) who was at the top of the stairs, described § 87(2)(b) as “getting physical” with the officers, waving his hands around although officers told him not move his hands. § 87(2)(b) then described seeing three officers grab § 87(2)(b) around the waist and bring him to the ground, twisting his arms and legs. § 87(2)(b) estimated the officers were tussling with § 87(2)(b) for two minutes before he was handcuffed (encl. H25-H27).

§ 87(2)(b) described himself as looking through his phone when Sgt. Miller tackled him, made no mention of pushing Sgt. Miller’s hand away or balling his fists, and did not describe himself as resisting once on the ground. However, both Sgt. Miller and PO Reddin described the tackling as occurring directly following § 87(2)(b) statement of “Yo, touch me and see what happens” and making contact with Sgt. Miller’s wrist. Additionally, Sgt. Miller stated that he did not bring § 87(2)(b) to the ground until after § 87(2)(b) balled his fist and moved into a fighting stance. § 87(2)(b) also described § 87(2)(b) as waving his hands around and being noncompliant with verbal orders directly before he was brought to the ground.

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] it is
recommended that **Allegation E** be closed as **unsubstantiated**.

Allegation F – Abuse of Authority: At § 87(2)(b) in Brooklyn, PO Ross Garner frisked § 87(2)(b)

Allegation G – Abuse of Authority: At § 87(2)(b) in Brooklyn, PO Ross Garner searched § 87(2)(b)

§ 87(2)(b) stated that an officer, identified as PO Garner, approached him at the top of the stairs and asked him what he had in his pockets, then told him that he could not go in the house because officers needed to check him and he had done something wrong. § 87(2)(b) told PO Garner that he had nothing in his pockets. PO Garner patted down § 87(2)(b) chest, pockets, up and down his legs, and his crotch, then went into § 87(2)(b) pockets and removed change from it.

§ 87(2)(b) who was in the midst of his interaction with Sgt. Miller at the time, observed § 87(2)(b) repeatedly asking PO Garner what they had done. He was not close enough to hear if PO Garner said anything to § 87(2)(b) and did not see PO Garner touch § 87(2)(b) [REDACTED]

PO Garner stated that he approached § 87(2)(b) at the top of the stairs. PO Garner tried to speak with § 87(2)(b) during which time § 87(2)(b) was ringing the bell and knocking on the door of the house, PO Garner could not recall if § 87(2)(b) responded in any way during this time. This went on for approximately 30 seconds, after which both of them noticed a struggle ensuing between § 87(2)(b) and officers. Upon noticing this struggle, § 87(2)(b) said “Hell, no,” and tried to run down the stairs. PO Garner held § 87(2)(b) back, placing a hand on his chest, and told him, “No, you’re not going to go down there and jump in the fight.” § 87(2)(b) replied to PO Garner, “Alright, we can do this right here.” § 87(2)(b) was still continuously ringing the bell to brownstone. The door to the brownstone then opened, at which point PO Garner restrained § 87(2)(b) from entering and the incident escalated into physical force. PO Garner denied ever seeing § 87(2)(b) frisked during the incident, and stated he did not know of a time during the incident, prior to being arrested, when § 87(2)(b) could have been frisked. Sgt. Miller saw PO Garner approach § 87(2)(b) at the top of the stairs, then engaged with § 87(2)(b) and did report seeing § 87(2)(b) again until the struggle to arrest him began. Sgt. Miller stated that he did not have knowledge of § 87(2)(b) being frisked prior to arrest.

A Stop, Question and Frisk Report (UF-250) completed by PO Reddin was prepared for § 87(2)(b) and lists him as being frisked. The reasons for the frisk are listed as knowledge of suspect’s prior criminal violent behavior/use of force/ use of weapon, furtive movements, actions indicative of engaging in violent crimes, refusal to comply with officer’s directions leading to reasonable fear for safety, and violent crime suspected (encl. H17). PO Reddin, who prepared this UF-250 based on observations and information reported by other officers, initially stated that he did not know when § 87(2)(b) was frisked, then stated that § 87(2)(b) was frisked after being placed under arrest. PO Reddin said that he did not know if § 87(2)(b) was frisked prior to being arrested. Sgt. Miller stated that the frisk noted in the UF-250 was probably referring to a frisk incident to arrest.

The frisk of § 87(2)(b) documented in the UF-250, just like that of § 87(2)(b) describes as reasons for the frisk actions allegedly taken by the civilian leading up to the arrest,

not after the arrest. § 87(2)(g)

In order to frisk a person, an officer must have reasonable suspicion that the person is armed. People v. De Bour, 40 N.Y.2d 210 (1976) (encl. A1-A11).

§ 87(2)(g)

Therefore, it is recommended that **Allegations F and G** be substantiated.

Allegation H – Force: At § 87(2)(b) in Brooklyn, PO Ross Garner used physical force against § 87(2)(b)

Allegation J – Force: At § 87(2)(b) in Brooklyn, Sgt. Michael Miller used physical force against § 87(2)(b)

§ 87(2)(b) stated that door to § 87(2)(b) opened and he tried to walk inside, at which point, PO Garner grabbed him from behind his chest area and said, “You’re not going inside your house.” There were several other officers present and they all participated in grabbing § 87(2)(b) in the vestibule area of the front door and pulled him back outside. § 87(2)(b) began holding onto one of the poles of the stair railing with his right arm. The officer grabbed § 87(2)(b) left hand and arm and were twisting it, and grabbing his legs and upper body. PO Garner grabbed § 87(2)(b) face with his left hand and punched § 87(2)(b) approximately four to five times on the knee with his right hand. § 87(2)(b) estimated the struggle went on for seven minutes, at which point he was handcuffed and carried to a police car. § 87(2)(b) was first placed in Sgt. Miller’s unmarked car. He was struggling to get in the car because his leg was stuck and was yelling, “My leg, my leg!” Sgt. Miller told him, “Get in there, get in there,” and punched him in the face.

§ 87(2)(b) said that he saw six to eight officers, at least three in plainclothes, at the top of the stairs. The front door of the house was open and the officers appeared to be trying to either get inside or pull someone out of the house. He then observed officers bringing a handcuffed § 87(2)(b) down the stairs. § 87(2)(b) stated that she opened the front door and § 87(2)(b)

§ 87(2)(b) was standing by the front door while an officer stood on the steps leading up to the front door. § 87(2)(b) shouted at the officer, “What did I do?” § 87(2)(b) could not recall how the officer responded but stated that the officer and § 87(2)(b) continued to yell at each other and the officer then proceeded to swing at § 87(2)(b) (encl. D2). § 87(2)(b) reacted by trying to avoid the swing, which caused § 87(2)(b) the officer, and § 87(2)(b) to fall and the door to swing open. § 87(2)(b) described § 87(2)(b) being brought to a vehicle and driven away, but did not allege that any force was used at the vehicle. § 87(2)(b), who lives at § 87(2)(b), came outside and observed a young male, who he knows by the name of § 87(2)(b) inside of § 87(2)(b). There were several officers standing at the top of the stairs and they appeared to be attempting to pull him out of the house. § 87(2)(b) did not see any officer attempt to punch, kick, or strike the male. After approximately ten minutes, the officers managed to pull the male out of the house and to the ground. They had their knees on his head and back and handcuffed him (encl. G1). § 87(2)(b) § 87(2)(b) father, came outside and observed § 87(2)(b) hanging off the top of the entrance door of § 87(2)(b). There were approximately five to ten officers attempting to pull him down. § 87(2)(b) did not see any officer strike § 87(2)(b).

PO Garner stated that an individual opened the door to § 87(2)(b) and as soon as the door was opened, § 87(2)(b) attempted to run inside. § 87(2)(b) got into the threshold of the door, but made it no further due to PO Garner restraining him. PO Garner grabbed § 87(2)(b) from behind, wrapping his arms around § 87(2)(b) waist and stomach area. § 87(2)(b) grabbed onto the door frame of the house and attempted to pull himself inside the house while PO Garner was holding him back. PO Garner continued to struggle with § 87(2)(b) who was kicking his legs, and bit PO Garner on his right index finger. PO Garner stated that this bite did not break the skin, but caused momentary pain. PO Garner was grabbing § 87(2)(b) arms and legs during the struggle, but mostly his arms. This struggle went on for several minutes; PO Garner described it as a stalemate. Eventually, officers were able to get § 87(2)(b) hands and handcuff him. PO Garner did not know if § 87(2)(b) walked to the car or was carried and stated that § 87(2)(b) was physically compliant once he was handcuffed.

Sgt. Miller stated that as he was speaking to a handcuffed § 87(2)(b) he noticed PO Garner struggling with § 87(2)(b) at the top of the stairs. Sgt. Miller told PO Reddin to remain with § 87(2)(b) and ran up the stairs to assist PO Garner with arresting § 87(2)(b). Sgt. Miller described PO Garner as “wrestling” with § 87(2)(b) and could not recall what specific parts of § 87(2)(b) body PO Garner was in contact with. PO Garner, Sgt. Miller, and § 87(2)(b) were struggling for about 15-20 seconds, with Sgt. Miller assisting the struggle by grabbing § 87(2)(b) arms and attempting to handcuff him. At one point during this struggle § 87(2)(b) was holding onto the doorframe of the house with his legs up in the air. Sgt. Miller also stated that at some point during the struggle, § 87(2)(b) bit PO Garner. Sgt. Miller did not see this bite occur, but heard PO Garner yelling, “He’s biting me, he’s biting me!” He believed the bite was somewhere on PO Garner’s hand/finger area, but could not remember specifically. Sgt. Miller estimated they were struggling for two minutes before, with the assistance of additional officers, they were able to handcuff § 87(2)(b). Sgt. Miller did not know who transported § 87(2)(b) and was not aware of any problems that occurred with § 87(2)(b) being placed in the car.

PO Reddin stated that during the struggle with § 87(2)(b) he remained with § 87(2)(b) and radioed for additional units. PO Reddin did not see PO Garner’s finger get bitten, but was later informed about it by PO Garner. PO Reddin did not know who handcuffed § 87(2)(b) and did not recall seeing him being taken to the car after he was arrested.

When PO Kelley arrived at the incident location, he observed a struggle occurring at the top of the stairs and ran up the stairs. PO Kelley stated there were four to five officers involved in the struggle and two of them were PO Garner and Sgt. Miller. During the struggle, PO Kelley heard PO Garner say “He bit my finger,” but did not see this occur. He described § 87(2)(b) as a little combative, shrugging his shoulders and making statements such as “Get the fuck off me.” PO Kelley stated that it was never necessary for any officer to take any action like kicking or punching to subdue § 87(2)(b) and never did anything like this. PO Kelley was personally involved in handcuffing § 87(2)(b) grabbing one of his arms. PO Kelley stated this was the only action he took and was only involved in the struggle for approximately 20 seconds. He said that once handcuffed, § 87(2)(b) was physically compliant and was not aware of any problems with § 87(2)(b) transport, although he did not know who transported § 87(2)(b).

PO Hellberg stated that he observed § 87(2)(b) being arrested at the top of the stairs of a brownstone and officers were struggling with him. Approximately three officers were at the top of the stairs, one of which was PO Garner. The officers appeared to be having trouble getting § 87(2)(b) arms behind his back because § 87(2)(b) kept pulling his arms forward, trying to pull them out of the officer’s grasps. PO Hellberg noted that by the time he got there, the struggle had almost concluded and the struggle was only going on for a couple of seconds. He did not see any officer holding any other part of § 87(2)(b) body besides his arms and did not observe any officer make a motion that could be categorized as punching or kicking. PO Hellberg could not remember which vehicle § 87(2)(b) was placed in or who transported him. PO Hellberg did not take any police action at the scene.

PO Colombini did not recall what he was doing at the incident scene, with the exception of walking around and being outside of his car. He did not recall if one of the arrested individuals was at the top of the stairs, but recalled there being several civilians on the stairs.

§ 87(2)(g)

Therefore, it is recommended that **Allegations H and J** be closed as **unsubstantiated**.

Allegation I – Force: At § 87(2)(b) in Brooklyn, an officer used a chokehold against § 87(2)(b)

Allegation K – Abuse of Authority: Officers entered § 87(2)(b) and § 87(2)(b) in Brooklyn.

§ 87(2)(b) stated that during his arrest, his father, § 87(2)(b) came outside and told the officers, “Stop, stop what you’re doing to my son, that’s not right.” § 87(2)(b) then managed to grab hold of § 87(2)(b) hand and was trying to pull him down. One officer put his arm around § 87(2)(b) neck and mouth. § 87(2)(b) could not describe this officer besides being a white male in plainclothes, who came out of the second unmarked car that had arrived.

§ 87(2)(b) stated that while he was holding onto his son, a uniformed officer, who he could not describe, grabbed him by the front of his throat for ten seconds, restricting his breathing (encl. G2).

No other civilian alleged that an officer made contact with § 87(2)(b) neck and all officers interviewed denied ever making contact with a civilian's neck or seeing any other officer make contact with a civilian's neck. Additionally, both § 87(2)(b) and § 87(2)(b) were unable to describe the officer beyond very basic details and these descriptions were in direct conflict with each other, with § 87(2)(b) describing the officer as dressed in plainclothes and § 87(2)(b) describing him as being dressed in uniform.

§ 87(2)(b) stated that after the officers arrested § 87(2)(b) some of the officers began to shine flashlights into the vestibule of the residence and proceeded to enter. § 87(2)(b) proceeded to tell the officers to get out of her house repeatedly. One officer told her that they had to make sure they did not drop anything and she had pointed out a walkie talkie that was on the landing and told him that there was nothing else. § 87(2)(b) said that after § 87(2)(b) was handcuffed, officers stated that they were looking for a gun and went into both § 87(2)(b) and § 87(2)(b).

A letter was received from the Integrity Control Officer at the 81st Precinct, Lt. Tabatha Blake, in response to a request for a copy of any consent to enter/search forms. Lt. Blake stated that Sgt. Miller was interviewed regarding the incident and informed Lt. Blake that no entry was made inside of the residence (encl. N49).

No other civilian saw officers inside the home, with the exception of when struggling in the doorway to arrest § 87(2)(b). All officers also denied entering the homes, § 87(2)(g).

§ 87(2)(b) it is recommended that **Allegations I and K** be closed as **officers unidentified**.

Allegation L – Abuse of Authority: En route to the 81st Precinct stationhouse, Sgt. Michael Miller threatened § 87(2)(b) with the use of force.

Allegation M – Discourtesy: At the 81st Precinct stationhouse, Sgt. Michael Miller spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that he was transported to the precinct in an unmarked car, with PO Garner sitting in the back with § 87(2)(b) and Sgt. Miller in the front passenger seat. § 87(2)(b) could not recall who was driving, but that it was possibly PO Reddin. While being transported back to the stationhouse, Sgt. Miller said to him, "If this was 19-something I would split your head open with a night stick." Once they arrived at the stationhouse, § 87(2)(b) asked PO Garner to check the backseat to see if he had dropped anything. § 87(2)(b) was speaking with Sgt. Miller in the parking lot and asked him, "What's wrong with you?" Sgt. Miller laughed and called § 87(2)(b) a "pussy." § 87(2)(b) did not reply to this comment and Sgt. Miller said, "You pussy, I'll beat your ass."

Sgt. Miller denied ever making any of these statements, or hearing any other officer say this. All other officers interviewed also denied making these statements, or hearing any other officer make these statements. § 87(2)(g)

Therefore, it is recommended that **Allegations L and M** be closed as **unsubstantiated**.

Allegation N – Discourtesy: At the 81st Precinct stationhouse, an officer spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that an officer told other officers to place him in a back cell because he was being an “asshole” and would not give his name. § 87(2)(b) was unable to describe this officer, beyond stating that he was “one of the detectives.”

All officers interviewed denied ever referring to § 87(2)(b) as an “asshole” or hearing any other officer say this. § 87(2)(g)

it is recommended that **Allegation N** be closed as **officer unidentified**.

Allegation O – Force: At the 81st Precinct stationhouse, Sgt. Michael Miller used physical force against § 87(2)(b)

Allegation P – Force: At the 81st Precinct stationhouse, PO Ross Garner used physical force against § 87(2)(b)

§ 87(2)(b) alleged that he was taken to a back cell by two uniformed officers. He was placed in the back cell with Sgt. Miller, PO Reddin, and another officer. PO Reddin punched § 87(2)(b) first, in the face, then Sgt. Miller punched § 87(2)(b) and then all three officers began punching § 87(2)(b). § 87(2)(b) attempted to cover himself and was swinging back at the officers. In the scuffle, § 87(2)(b) was brought to the ground with the officers. Sgt. Miller grabbed and tied § 87(2)(b) arms and then hit § 87(2)(b) in the face approximately three to four times. PO Reddin hit § 87(2)(b) in the face approximately two times. At a certain point, another officer, who § 87(2)(b) could not describe as he only heard the officer speak and did not see him, came to the back and told Sgt. Miller to stop.

Sgt. Miller stated that he might have seen § 87(2)(b) at the stationhouse when he was getting stamped in at the front desk, but did not have any interaction with him and did not see him again after that. Sgt. Miller stated he did not ever see § 87(2)(b) in the holding cells, or have any verbal or physical contact with him at the stationhouse. PO Reddin stated that he did the arrest processing for § 87(2)(b) and § 87(2)(b). He saw § 87(2)(b) in the holding cells, but did not recall there being any problems. PO Reddin did not have any physical contact with § 87(2)(b) besides what is required during arrest processing, and did not see any other officer have physical contact with him. All other officers interviewed stated that they did not have physical contact with § 87(2)(b) at the stationhouse and did not have knowledge of him being in the back cell, with the exception of PO Kelley who stated that it was possible that § 87(2)(b) was brought to the back cells to be interviewed, but did not have direct knowledge of this. § 87(2)(b) alleged that as a result of this incident at the stationhouse, he received a black eye to his left eye and was given ice for the eye at Central Booking. § 87(2)(b) arrest photograph displays slight bruising under his left eye. § 87(2)(b) did not request medical attention and was not taken to the hospital.

§ 87(2)(g) it is recommended that **Allegations N and O** be closed as **unsubstantiated**.

Allegation Q – Force: At the 81st Precinct stationhouse, an officer used physical force against § 87(2)(b)

§ 87(2)(b) described the third officer that was involved in the fight in the back cell as white male, standing approximately 6’2” tall, with light blond hair and a full sleeve of tattoos. § 87(2)(b) stated that this officer was one of the officers in one of the other cars from the incident scene. This description did not match any of the officers identified and, as noted above, all officers interviewed denied having physical contact with § 87(2)(b) or having knowledge of § 87(2)(b) being in the back cells of the stationhouse. § 87(2)(g)

it is recommended that **Allegation Q** be closed as **officer unidentified**.

Pod: 9

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date